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US DISTRICT COURT E.D.N.Y.

★ OCT 31 2011 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
JERVIS DREW,

Plaintiff,

v.

**COMPLAINT &
JURY DEMAND**

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
BRIAN BROWN, Shield # 31126,
Brooklyn South Gang Squad,
NEW YORK CITY POLICE OFFICER
JOHN DOE, 69th Precinct,
NEW YORK CITY POLICE OFFICER
PEACOCK, 69th Precinct,
NEW YORK CITY POLICE SERGEANT
PALVEK, 69th Precinct,

Defendant(s).
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CV11-5290

TOWNES, J.

POLLAK, M.J.

PRELIMINARY STATEMENT

1. This is a Civil Rights action in which Plaintiff, JERVIS DREW, seeks redress for the Defendant's violation of his rights secured by the Civil Rights Act of 1866 and 1871, 42 U.S.C. 1981 and 1983 and of the rights secured by the Fourth Amendment, and by the Equal Protection Clauses of the Fourteenth Amendment to the United States Constitution and/or rights secured by under the Laws and Constitution of the State of New York.

JURISDICTION

2. Jurisdiction is conferred upon this Court by 28 U.S.C. Sections 1331, 1343(3), this being an action seeking redress for the violation of Plaintiff's Constitutional and Civil Rights. The amount of damages in controversy exceeds Seventy Five Thousand (\$75,000.00) Dollars, exclusive of

interest and costs.

3. Plaintiff's claim for declaratory and injunctive relief is authorized by 28 U.S.C. sections 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

4. The Plaintiff further invokes this Court's pendant jurisdiction, pursuant to 28 U.S.C. Section 1367(a), over any and all State claims and as against all parties that are so related to claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

5. The Plaintiff demands a trial by jury on each and every one of the claims pleaded herein.

VENUE

6. Venue is proper for the United States District Court of the Eastern District of New York pursuant to 28 U.S.C. Sections 1391 (a), (b) and (c).

PARTIES

7. The Plaintiff, JERVIS DREW is a United States Citizen and resident of the United States, and at all times relevant herein is a resident of the State of New York.

8. Defendants NEW YORK CITY POLICE OFFICERS BRIAN BROWN, Shield Number 31126, of The Brooklyn South Gang Squad, and OFFICER JOHN DOE of the 69th Precinct, are and at all times relevant, officers, employees/agents of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK. Defendant(s) NEW YORK CITY POLICE OFFICERS BRIAN BROWN and JOHN DOE are sued individually and in their official capacity. At all times relevant Defendant(s) OFFICERS BRIAN BROWN and JOHN DOE were acting under the color of State Law in the course and scope of their duties and functions

as agents, servants, employees and officers of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful duties. Defendant(s) OFFICERS BRIAN BROWN and JOHN DOE were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, and incidental to the lawful pursuit of their duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

9. Defendant(s) NEW YORK CITY POLICE OFFICER PEACOCK, and NEW YORK CITY POLICE SERGEANT PALVEK of the 69th Precinct are and at all times relevant officers, employees/agents of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK. Defendant(s) OFFICER PEACOCK and SERGEANT PALVEK are sued individually and in their official capacity. At all times relevant, Defendant(s) OFFICER PEACOCK and SERGEANT PALVEK were acting under color of State Law in the course and scope of their duties as agents, servants, employees and officers of THE NEW YORK CITY POLICE DEPARTMENT and otherwise performed and engaged in conduct incidental to the performance of their lawful duties. Defendant(s) OFFICER PEACOCK and SERGEANT PALVEK were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, and incidental to the lawful pursuit of their duties, as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

10. Defendant CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department and the employment of Police Officers as said risk attaches to the public consumers of the services provided by Defendant CITY OF NEW YORK and its Police Department.

11. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers.

STATEMENT OF FACTS

First Incident

12. On November 3, 2010 at approximately 4:00 p.m. Plaintiff, who is a resident of Kings County New York, was on foot in the vicinity of 108th Street and Glenwood Road in Kings County, Brooklyn, New York, with his friend Willy Smith, when another friend named Tyrone Mitchell, who was driving, observed the Plaintiff. Mr. Mitchell proceeded to pull over and offer the Plaintiff and Mr. Smith a ride. The Plaintiff and Mr. Smith entered the vehicle, with Mr. Smith getting sitting in the front passenger seat and Plaintiff getting in the back seat. Immediately prior to Mr. Smith sitting in the front seat he observed some refuse on the seat. Mr. Mitchell informed Mr. Smith that he could throw it out, which Mr. Smith proceeded to do prior to sitting in the front seat. The Plaintiff was in the process of getting in the back seat while the aforementioned was occurring. Almost immediately after the Plaintiff sat in the back seat of Mr. Mitchell's car he heard sirens from behind the

automobile. The Plaintiff then observed flashing lights in the rearview mirror and observed another police vehicle pull in front of Mr. Mitchell's vehicle. The Plaintiff then observed a member of THE NEW YORK CITY POLICE DEPARTMENT, described as a dark skinned African-American male, approximately six feet tall and clean shaven, upon information and belief, Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN, Shield Number 31125 of the Brooklyn South Gang Squad, proceed to approach Mr. Mitchell's vehicle and state in sum and substance to Mr. Smith "you threw something out of the car." Mr. Smith stated in sum and substance, "yeah, I know, I was in a rush, just give me the ticket." In response, the officer stated in sum and substance, "hold on a minute." At this point in time, a second member of the NEW YORK CITY POLICE DEPARTMENT, believed to be Defendant NEW YORK CITY POLICE OFFICER JOHN DOE approached Mr. Mitchell's vehicle and asked him for his drivers' license and registration. Upon handing Defendant OFFICER DOE his license and registration Defendant OFFICER DOE ordered Mr. Mitchell to exit the motor vehicle. The Plaintiff then observed Defendant OFFICER DOE order Mr. Mitchell to place his hands on the hood of the car, after which Defendant OFFICER DOE proceeded to pat down Mr. Mitchell. Defendant NEW YORK CITY POLICE OFFICER BROWN then ordered the Plaintiff and Mr. Smith to exit the vehicle, whereupon Defendant OFFICER BROWN proceeded to search Plaintiff, asking the Plaintiff if he "had any drugs on him". When the Plaintiff responded in the negative, Defendant OFFICER BROWN informed the Plaintiff in sum and substance, "We're going to strip search you at the precinct." The Plaintiff was then handcuffed and transported to the 69th precinct by Defendant OFFICER BROWN and Defendant OFFICER DOE. Upon arrival at the 69th precinct the Plaintiff was taken to an area near the holding cells where he was ordered to remove all his clothing, item by item, including removing the laces from his boots,

and subjected to a strip search by Defendant OFFICER JOHN DOE and two other members of the NEW YORK CITY POLICE DEPARTMENT, who were observed by Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN. After the strip search the Plaintiff was ordered to put his clothes back on and placed in a holding cell. While in the cell the Plaintiff asked Defendant OFFICER BRIAN BROWN what he was being charged with. Defendant OFFICER BROWN informed the Plaintiff that he was being charged with "a B felony". When the Plaintiff asked Defendant OFFICER BROWN how he could be charged with a B felony when he didn't have any drugs on him Defendant OFFICER BROWN told the Plaintiff "don't worry about it, it'll be thrown out when you get to Court." The Plaintiff was held in custody at the 69th precinct until approximately 11:00 p.m. whereupon he was transported to Central Booking, where he was subjected to another search of his person and was photographed by members of THE NEW YORK CITY POLICE DEPARTMENT. The Plaintiff was subsequently charged by THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE, which requested bail based upon a Felony Criminal Court complaint which was filed based upon facts alleged and sworn to by Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN charging the Plaintiff with violating New York Penal Law Section 220.16(1),. The Plaintiff was unable to make bail and remained in the custody of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, a municipal agency of Defendant CITY OF NEW YORK, for approximately seven days, resulting in the Plaintiff missing work and time with his family. The Plaintiff elected to testify before the Grand Jury in Kings County, which was investigating the allegations levied against the Plaintiff by Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN. The Grand Jury dismissed all the charges against the Plaintiff, whereafter the Plaintiff was released from the custody of THE NEW YORK CITY DEPARTMENT

OF CORRECTIONS.

Second Incident

13. On August 24, 2011 at approximately 4:30 p.m. the Plaintiff was in the vicinity of 105-13 Glenwood Road in Kings County inside of a park near several other individuals when members of THE NEW YORK CITY POLICE DEPARTMENT, including named Defendants NEW YORK CITY POLICE OFFICER PEACOCK of the 69th precinct and NEW YORK CITY POLICE SERGEANT PALVEK, also of the 69th precinct, approached the Plaintiff while he was on a cellular telephone. Defendant NEW YORK CITY POLICE OFFICER PEACOCK verbally ordered the Plaintiff to stop, while simultaneously placing his hand on the Plaintiff's right arm and turning Plaintiff towards him, asked the Plaintiff in sum and substance: "what's in your hand?" The Plaintiff responded that he had nothing in his hands, whereupon Defendant OFFICER PEACOCK proceeded to ask the Plaintiff what was in his pockets, while simultaneously grabbing and searching the Plaintiff's pocket, asking the Plaintiff "what's this?" The Plaintiff responded that the items were keys and a lighter. Defendant OFFICER PEACOCK then told the Plaintiff in sum and substance: "walk with me to the car", while physically holding Plaintiff's right arm. Defendant OFFICER PEACOCK proceeded to order the Plaintiff to stand next to a NEW YORK CITY POLICE DEPARTMENT vehicle, whereupon the Plaintiff was subjected to a physical search of his person. Immediately after the Plaintiff was searched SERGEANT PALVEK approached and asked the Plaintiff for identification. The Plaintiff provided Defendant SERGEANT PALVEK with identification as ordered, whereupon Defendant SERGEANT PALVEK saw the Plaintiff's name and told the Plaintiff in sum and substance that he was "going through the system." When the Plaintiff asked Defendant SERGEANT PALVEK why he was going through the system Defendant

SERGEANT PALVEK responded by stating in sum and substance, "because you're an asshole". The Plaintiff's friends, who were still present in the park, observed the aforementioned search, questioning and comments by Defendant OFFICER PEACOCK and Defendant SERGEANT PALVEK. The Plaintiff was then transported to the 69th Precinct, where he was fingerprinted, photographed and subjected to another physical search of his person by members of THE NEW YORK CITY POLICE DEPARTMENT. The Plaintiff remained at the 69th precinct until the next day, when he was transported to Central Booking. At Central Booking the Plaintiff was subjected to a third physical search of his person by members of the NEW YORK CITY POLICE DEPARTMENT. After approximately four hours the Plaintiff was released from the custody of THE NEW YORK CITY POLICE DEPARTMENT without seeing a lawyer, Judge, or receiving an explanation from either Defendant OFFICER PEACOCK or Defendant SERGEANT PALVEK.

FIRST FEDERAL CLAIM

Violation of the Rights Secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth Amendment to the United States Constitution-False Arrest, Unlawful Search

14. Plaintiff incorporates by reference the allegations set forth in paragraphs One (1) through Thirteen (13) as if fully set forth herein.

15. Upon information and belief, the conduct of Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN, Shield Number 31126 of the Brooklyn South Gang Squad, acting under color of State Law, violated section 42 U.S.C. 1983 by unlawfully seizing, detaining, searching, arresting and imprisoning Plaintiff without probable cause.

16. That the actions of Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN

occurred in and during the course and scope of his duties and functions as a New York City Police Officer, and while acting as an agent and employee of THE NEW YORK CITY POLICE DEPARTMENT a municipal agency of Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

SECOND FEDERAL CLAIM

Violation of Rights Secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth

Amendment to the United States Constitution-Unlawful Strip Search

17. Plaintiff incorporates by reference the allegations set forth in paragraphs One (1) through Sixteen (16) as if fully set forth herein.

18. That upon information and belief, the conduct of Defendant(s) NEW YORK CITY POLICE OFFICER BRIAN BROWN, Shield Number 31126 of Brooklyn South Gang Squad, and Defendant NEW YORK CITY POLICE OFFICER JOHN DOE, acting under the color of State Law, violated section 42 U.S.C. 1983 by unlawfully conducting and subjecting Plaintiff to a strip search without justification or cause.

19. That the actions of Defendant(s) NEW YORK CITY POLICE OFFICER BRIAN BROWN and NEW YORK CITY POLICE OFFICER JOHN DOE occurred in and during the course and scope of their duties and functions as New York City Police Officers, and while acting as agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

THIRD FEDERAL CLAIM

Violation of Rights secured by Section 42 U.S.C. 1983 and the Fourteenth Amendment to the United States Constitution-Malicious Prosecution

20. Plaintiffs incorporate each and every allegation contained in Paragraphs One (1) through Nineteen (19) as if fully set forth herein.

21. That upon information and belief the conduct of Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN of Brooklyn South Gang Squad acting under the color of State Law did violate Section 42 U.S.C. 1983 by unlawfully and maliciously prosecuting Plaintiff without basis in law or fact.

22. That the actions of Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN occurred in and during the scope of his duties and functions as a New York City Police Officer and while acting as an agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

FOURTH FEDERAL CLAIM

Violation of Rights secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth

Amendments to the United States Constitution- False Arrest

23. Plaintiff incorporates by reference each and every allegation contained in paragraphs One (1) through Twenty Two (22) as if fully set forth herein.

24. That upon information and belief the conduct of Defendant NEW YORK CITY POLICE OFFICER PEACOCK of the 69th Precinct acting under color of State law did violate Section 42 U.S.C. 1983 by unlawfully seizing, searching and arresting Plaintiff without probable cause or lawful reason.

25. That the actions of Defendant NEW YORK CITY POLICE OFFICER PEACOCK occurred in and during the scope of his duties and functions as a New York City Police Officer and

while acting as an agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY of NEW YORK resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

FIFTH FEDERAL CLAIM

Violation of Rights secured by Section 42 U.S.C. 1983 and the Fourth and Fourteenth Amendments to the United States Constitution- False Arrest

26. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Twenty Five as if fully set forth herein.

27. That upon information and belief, the conduct of Defendant NEW YORK CITY POLICE SERGEANT PALVEK of the 69th Precinct, acting under color of State Law, did violate Section 42 U.S.C. 1983 by unlawfully seizing, detaining, searching and arresting Plaintiff without probable cause or lawful reason.

28. That the actions of Defendant NEW YORK CITY POLICE SERGEANT PALVEK occurred in and during the scope of his lawful duties as a New York City Police Officer and while acting as an agent and employee of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.

FIRST STATE LAW CLAIM

29. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Twenty Eight (28) as if fully set forth herein.

30. That the actions of Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN did result in the false detention, search, arrest, and imprisonment of Plaintiff and causing the

aforementioned and hereinafter mentioned harm to Plaintiff.

SECOND STATE LAW CLAIM

31. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty (30) as if fully set forth herein.

32. That the actions of Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN resulted in the intentional infliction of emotional distress to Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

THIRD STATE LAW CLAIM

33. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Thirty Two (32) as if fully set forth herein.

34. That the actions of Defendant NEW YORK CITY POLICE OFFICER JOHN DOE resulted in the intentional infliction of emotional distress to Plaintiff causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FOURTH STATE LAW CLAIM

35. The Plaintiff incorporates by reference the allegations contained in paragraphs One through Thirty Four (34) as if fully set forth herein.

36. That the actions of Defendant NEW YORK CITY POLICE OFFICER PEACOCK resulted in the false arrest, detention, imprisonment and search of Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

FIFTH STATE LAW CLAIM

37. The Plaintiff incorporate by reference the allegations contained in Paragraphs One(1)

through Thirty Six (36) as if fully set forth herein.

38. That the actions of Defendant NEW YORK CITY POLICE OFFICER PEACOCK, resulted in the intentional infliction of emotional distress to Plaintiff causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SIXTH STATE LAW CLAIM

39. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through thirty Eight (38) as if fully set forth herein.

40. That the actions of Defendant NEW YORK CITY POLICE SERGEANT PALVEK resulted in the false arrest, detention, search and imprisonment of Plaintiff causing the aforementioned and hereinafter mentioned harm to Plaintiff.

SEVENTH STATE LAW CLAIM

41. The Plaintiff incorporates by reference the allegations contained in Paragraphs One (1) through Forty (40) as if fully set forth herein.

42. That the actions of Defendant NEW YORK CITY POLICE SERGEANT PALVEK resulted in the intentional infliction of emotional distress, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

EIGHTH STATE LAW CLAIM

43. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Forty Two (42) as if fully set forth herein.

44. That the actions of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN resulted in

the false arrest, detention and searches of Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

NINTH STATE LAW CLAIM

45. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Forty Four (44) as if fully set forth herein.

46. That the actions of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE OFFICER JOHN DOE resulted in the false arrest, detention and search and seizure of Plaintiff, and causing the aforementioned and hereinafter mentioned harm to Plaintiff.

TENTH STATE LAW CLAIM

47. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Forty Six (46) as if fully set forth herein.

48. That the actions of THE NEW YORK CITY POLICE DEPARTMENT, a municipal agency of Defendant CITY OF NEW YORK by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE OFFICER PEACOCK resulted in the false arrest, detention and search of the Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

ELEVENTH STATE LAW CLAIM

49. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Forty Eight (48) as if fully stated herein.

50. That the actions of THE NEW YORK CITY POLICE DEPARTMENT, a municipal

agency of Defendant CITY OF NEW YORK, by negligently hiring, training, screening, supervising and/or instructing Defendant NEW YORK CITY POLICE SERGEANT PALVEK resulted in the false arrest, detention, and search of Plaintiff, causing the aforementioned and hereinafter mentioned harm to Plaintiff.

TWELFTH STATE LAW CLAIM

51. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Fifty (50) as if fully set forth herein.

52. That Defendant CITY OF NEW YORK is liable for the actions of Defendant NEW YORK CITY POLICE OFFICER BRIAN BROWN through the doctrine of Respondeat Superior for the intentionally inflicted emotional distress upon Plaintiff, which caused Plaintiff to suffer severe anxiety, public humiliation and embarrassment, as well as loss of wages and incurrence of monetary damages.

THIRTEENTH STATE LAW CLAIM

53. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Fifty Two (54) as if fully set forth herein.

54. That Defendant CITY OF NEW YORK is liable for the actions of Defendant NEW YORK CITY POLICE OFFICER PEACOCK through the doctrine of Respondeat Superior for the intentionally inflicted emotional distress upon Plaintiff, which caused the Plaintiff to suffer severe anxiety, public humiliation and embarrassment.

FOURTHEENTH STATE LAW CLAIM

55. The Plaintiff incorporates by reference the allegations contained in paragraphs One (1) through Fifty Four (54) as if fully set forth herein.

56. That Defendant CITY OF NEW YORK is liable for the actions of NEW YORK CITY POLICE SERGEANT PALVEK through the doctrine of Respondeat Superior for the intentionally inflicted emotional distress upon Plaintiff, which caused Plaintiff to suffer severe anxiety, public humiliation and embarrassment

WHEREFORE, the Plaintiffs demands the following relief jointly and severably against all Defendants:

1. Compensatory Damages for Plaintiff.
2. Punitive Damages against Defendant(s) NEW YORK CITY POLICE OFFICER BRIAN BROWN, Brooklyn South Gang Squad, NEW YORK CITY POLICE OFFICER JOHN DOE of the 69th Precinct, NEW YORK CITY POLICE OFFICER PEACOCK of the 69th Precinct, and NEW YORK CITY POLICE SERGEANT PALVEK of the 69th Precinct.
3. A Court Order pursuant to 42 U.S.C. 1998 that the Plaintiff is entitled to costs of the instant action, and Attorney's fees.
4. Such other and further relief as the Court may deem necessary and appropriate, including declaratory relief.

Dated: October 28, 2011



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